

Guidelines for the disposal of Enemy Property Order, 2018

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Union of India - Act

Guidelines for the disposal of Enemy Property Order, 2018

UNION OF INDIA

India

Guidelines for the disposal of Enemy Property Order, 2018

Rule GUIDELINES-FOR-THE-DISPOSAL-OF-ENEMY-PROPERTY-ORDER-2018 of 2018

Published on 21 March 2018

Commenced on 21 March 2018

[This is the version of this document from 21 March 2018.]

[Note: The original publication document is not available and this content could not be verified.]

Guidelines for the disposal of Enemy Property Order, 2018

Published vide Notification No. G.S.R. 258(E), dated 21.3.2018

Last Updated 9th March, 2019

G.S.R. 258(E). - In exercise of powers conferred by sub-section (6) of section 8A of the Enemy Property Act, 1968 [34 of 1968], the Central Government hereby makes the following order for the disposal of enemy property (both movable and immovable) vested in the Custodian of Enemy Property for India under the said Act, namely:-

1.

Short title and commencement.

(1)

This Order may be called Guidelines for the disposal of Enemy Property Order, 2018.

(2)

It shall come into force on the date of its publication in the Official Gazette.

2.

Custodian to submit list of all enemy properties to the Central Government.

- A list of all vested enemy properties (movable and immovable) shall be prepared by the Custodian for its submission to the Central Government within three months from the publication of this order.

3.

Valuation of immovable enemy properties.

(1)

For the purpose of valuation of immovable enemy property, there shall be constituted a Valuation Committee at the district level consisting of the following, namely :-

(a)

District Magistrate of a district where the property is situated.....Chairman

(b)

Registrar/ Sub-Registrar of the District.....Member

(c)

Superintendent/ Executive Engineer of CPWD/PWD.....Member

(2)

The Committee shall consider the circle rate of the area where the property is situated or a rate fixed by the district administration as a mode of valuation of the property alongwith other valuation modes.

4.

Submission of valuation reports of the enemy properties.

- The Custodian shall prepare and submit the State-wise list of the enemy properties along with their valuation to the Central Government within one month from the date of receipt of the valuation report from the Valuation Committee.

5.

Constitution of Committee for disposal of enemy property.

(1)

The Central Government shall constitute a Committee consisting of the following to be known as Enemy Property Disposal Committee, namely:-

(a)

Additional Secretary to the Government of India in the Ministry or Department dealing with enemy propertyChairman

(b)

AS and FA in the Ministry or Department dealing with enemy propertyMember

(c)

Joint Secretary in the Department of Disinvestment and Public Asset Management, Ministry of Finance.....
.....Member

(d)

Joint Secretary in the Ministry of Law and Justice
Member

(e)

Chief Engineer, CPWD.....Member

(f)

Custodian of Enemy Property for India.....Member

(g)

Joint Secretary in the Ministry or Department dealing with enemy property
.....Member-Secretary

(2)

The Committee shall give its recommendation to the Central Government for the disposal of enemy property or the manner in which the enemy property may be dealt with and matters connected therewith.

(3)

The quorum for a meeting of the Committee shall be half its total strength.

7.

Recommendations to the Central Government by the Enemy Property Disposal Committee.

(1)

The Enemy Property Disposal Committee shall make any of the following recommendations to the Central Government in relation to the enemy property, namely:-

(a)

sale of enemy property;

(b)

usage of enemy property by the Ministries or Departments of the Central Government;

(c)

maintaining status quo in respect of enemy property;

(d)

transfer of enemy property;

(d)

[(i) Usages of Enemy Property by the State Government exclusively for public use.]

[Inserted by Notification No. G.S.R. 201(E), dated 8.3.2019 (w.e.f. 21.3.2018).]

(e)

any other manner in which the enemy property may be dealt with.

(2)

In case of vacant immovable enemy property, the Committee may recommend the purchaser offering the highest price for disposal of vacant immovable enemy property.

(3)

In case of occupied immovable enemy property, the Committee may recommend the percentage of valuation for its disposal to the existing occupier.

(4)

The Central Government shall consider the recommendations of the Committee and take its decision thereon.

8.

Sale of movable enemy property.

- The Custodian may sell the movable enemy property such as shares, with the prior approval of the Central Government, in one or more lots by itself or by authorising any professional body for such sale.

9.

Sale of immovable enemy property.

(1)

In case of vacant immovable enemy property, the Custodian or any authorised body may sell the property, in one or more lots to secure maximum sale price, with the prior approval of the Central Government, by any one of the following methods, namely:-

(a)

by obtaining quotations from the persons interested in buying the immovable property; or

(b)

by inviting tenders from the public (including through e-mode); or

(c)

by holding public auction; or

(d)

by any other method of sale; or

(e)

by engaging a professional body for sale of the property.

(2)

In case of occupied enemy property, the Custodian shall sell the property to the existing occupier or otherwise as may be decided by the Central Government and at the rate as determined by the Enemy Property Disposal Committee.

(3)

On receipt of the sale price of the property, the Custodian shall issue a certificate to the purchaser in Appendix - A. 10.

Submission of report by the Custodian to the Central Government.

- The Custodian shall send a report to the Central Government at such interval, of the enemy property (movable and immovable) disposed of whether by sale or otherwise, containing such details, including the price for which such enemy property has been sold and the particulars of the buyer to whom the properties have been sold or disposed of and the details of the proceeds of sale or disposal, deposited into the Consolidated Fund of India, as the Central Government, may specify.

Appendix-A

[See sections 5A, 10, 10A, 12 and 22A (b) of the Enemy Property Act, 1968 read with paragraph 9 of the Guidelines for the Disposal of Enemy Property Order, 2018]

Sale Certificate

(For Immovable Enemy Property)

Whereas the undersigned, being the Custodian under the Enemy Property Act and the rules and orders made thereunder and in exercise of the powers conferred by section 8A, read with sections 10, 10A, 12 and 22A(b) of the Enemy Property Act, 1968 (

34 of 1968

), sold in favour of _____ (purchaser), the immovable property vested free from all encumbrances in the Custodian under the aforesaid Act and shown below:-

2. The undersigned acknowledge the receipt of the sale price of Rs. _____ (Rupees _____ only) in full and handed over the delivery and possession of the scheduled property.

Description	of	the	Immovable	Property
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----- All that part and parcel of the property consisting of -----
---No. _____/Plot No. _____ in Survey No. _____/ City or Town Survey No. _____/ Khasara No. _____
within the registration sub-district _____ and District _____. Bounded: On the North by On the South by On the East
by On the West by -----

(Custodian of Enemy Property for India)

Date-----

Place-----

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